



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 27, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202202837 (Incident Date: April 27, 2022) regarding Sergeant Derek Sambolin, Tax No. 943771 (DADS No. 2023-28516)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted in connection with the single allegation that Sergeant Sambolin threatened an individual with the use of force.

In this matter, Sergeant Sambolin and his partners stopped an individual for selling metro-card swipes. The officers were able to handcuff the individual on the ground after he initially ran from police. Once on the ground, he actively resisted by jerking his shoulders in an apparent attempt to break free from the officer's control. He spit on and attempted to bite one of the officers. Numerous times, Sergeant Sambolin is heard on body worn camera telling the individual to stop, and that the struggle was over. Despite being told to stay on the ground, the individual continued to attempt to stand up. In response to this, Sergeant Sambolin displayed his conducted electrical weapon (CEW) in an effort to gain compliance since the officers were still searching the individual. The display was limited to the CEW being held at Sergeant Sambolin's side until the situation was under control. It was his belief that based on the individual's actions thus far, the situation could escalate quickly and he wanted his CEW readily available in case it became necessary to use it.

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Rather than being an improper threat of the use of force, Sergeant Sambolin's actions proved to be an effective de-escalation technique as the individual immediately calmed down.

Therefore, based on the foregoing, Sergeant Sambolin will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat of Force).

Sincerely,

A handwritten signature in dark ink, appearing to read 'AS Marino', with a long horizontal line extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office